

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CLBC064356: DAVID LEIGHTON vs JANE DOE, et al.

07/09/2026 in Department 21

Motion to Place Documents Under Seal Under Code of Civil Procedure Section 367.3 (Safe at Home)

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Jane Doe’s Motion to Place Documents Under Seal Under Code of Civil Procedure Section 367.3 (Safe at Home) (*Opposed*)

Tentative Ruling: Defendant Doe’s request to seal all Court documents is DENIED.

Defendant Doe’s request to redact her identifying information from the Court records is GRANTED in PART. The Court finds the overriding interests of Defendant Doe’s safety support sealing the original records and replacing them with the redacted versions. The redacted records provided by Doe simply redact her true name, signature, and initials from the original documents, and replace her name with the pseudonym Jane Doe. The Court shall seal the original Court records and replace them with the redacted versions that have been filed with the Court.

Additionally, the Court finds the probability of prejudice/harm to Doe Defendant is substantial should her prior alleged perpetrators obtain her personal information, while the prejudice to Plaintiff is minimal in comparison. The redaction of Doe’s true name, signature, and initials from the previously filed court documents is a narrowly tailored solution with no less restrictive means available.

The following exceptions apply:

- (a) The Proof of Service (POS-010 at page 22 of the SH-001 Confidential Information Form) redacts Doe’s name but does not have the Jane Doe name added in its place and must do so. Doe Defendant is to re-submit a Declaration and Order to the Court,

attaching a revised redacted version of this document, curing this defect, and requesting the Court replace the original with the properly redacted version.

- (b) The SH-020 form, at page 2, impermissively adds information that was not on the original document. (page 98 of the SH-001 Form). Doe Defendant is to include in the Declaration and Order referenced above in (a), attaching a revised redacted version of this document, curing this defect, and requesting the Court replace the original with the properly redacted version.
- (c) A failure to file and serve a Declaration and Order, attaching the revised redacted versions of the documents listed above in (a) and (b), **by no later than July 20, 2026**, will result in these documents remaining in the public court file as is.
- (d) In the Declaration of David Leighton in Opposition to Motion to Seal Court Records, paragraph 13, Doe seeks to redact the words “law-enforcement personnel.” (page 132 of the SH-001 Form). There is no explanation or basis for requesting these words redacted. The request to redact is DENIED.

The Court further grants Doe’s request to redact from all future filings, any reference to her identifying information as specified in CCP § 367.3, including her date of birth, age, current address(es), phone number, email address, and images of her face.

Defendant Doe is to give notice of this ruling within five (5) court days.

Discussion:

Although the moving party is an active participant in the Safe at Home program, the court may only order the record sealed if it makes express factual findings under California Rules of Court, rule 2.550(d):

- 1) There is an overriding interest overcoming the right of public access;
- 2) The overriding interest supports sealing;
- 3) A substantial probability of prejudice to that interest exists if the record is not sealed;
- 4) The proposed sealing is narrowly tailored; and
- 5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550(d), *Mercury Interactive Corp. v. Klein*, 158 Cal. App. 4th 60 (2007).)

Lodging and Redaction: The requesting party must lodge the unredacted records conditionally under seal with the court when the motion is made. (Cal. Rules of Court, rule 2.551, *Mercury Interactive Corp.*, *supra*). The party must also file a public redacted version of the documents,

excluding or redacting all "identifying characteristics" of the protected person. (CCP § 367.3, Cal. Rules of Court, rule 2.551.) Here, Doe Defendant has complied by filing redacted versions of all relevant documents.

Confidential Information Form: If the protected person is proceeding under a pseudonym, they must file and serve a confidential information form containing their true name and other excluded identifying characteristics, which the court must keep confidential. (CCP § 367.3.) Doe Defendant has done so.

In order to qualify under CCP § 367.3, the moving party must show they are a "protected person," meaning "a person who is an active participant" in the Safe At Home program. (CCP § 367.3(a)(3).) Although there is still no showing here, that Doe is, in fact, an active participant of this program other than her statement in her declaration, she presented evidence to the Court at the last hearing that she is a participant, and Plaintiff has not disputed this fact.

Next, before granting a motion to seal records, the Court must make five (5) factual findings under Cal. Rules of Court, rule 2.550(d):

(1) Overriding interest and (2) supporting sealing:

Doe is seeking to remove her true name, date of birth, age, and images of her face from the public Court file due to personal safety concerns. Plaintiff points out in his opposition that "Here, the records contain nothing more than a stale past address the defendants once resided at in the past and their names which are already known to their alleged stalker, The defendants' physical location is already protected under the Safe at Home program. There is nothing expressly confidential in any of the documents filed with the court and nothing contained in the records could be used in any way to find the defendants' current location."

Doe provides redacted versions of the documents in the Court file replacing her true name with Jane Doe. The Court finds that all of these requests to redact are straightforward. Doe's interest in her personal security and safety satisfy the overriding interest and support sealing of the original records and replacing them with the redacted versions except for the following:

- (a) The Proof of Service (POS-010 at page 22 of the SH-001 Confidential Information Form) redacts Doe's name but does not have the Jane Doe name added in it's place and must do so.
- (b) The SH-020 form, at page 2, impermissively adds information that was not on the original document. (page 98 of the SH-001 Form)
- (c) In the Declaration of David Leighton in Opposition to Motion to Seal Court Records, paragraph 13, Doe seeks to redact the words "law-enforcement personnel." (page 132 of the SH-001 Form). There is no explanation or basis for requesting these words redacted.

(3) Substantial probability of prejudice:

The prejudice to Doe could be significant if the current and future public documents were to lead a violent person from her past to locate and harm her. Whether there is a substantial probability, however, is difficult to discern based on her Declaration. Doe refers to very serious past trauma at the hands of “perpetrator/s” who are former military and police with access to weapons. But the information provided does not go beyond that. It is not clear whether we are dealing with a single individual, or multiple individuals. Doe provides no information as to when the past violence occurred, nor as to why these individuals continue to stalk her or still wish to harm her today.

Doe attached to her June 15, 2026 Reply declaration Judicial Counsel legislative history documentation inviting the public to comment on AB 800 Committee Recommendations to the Safe at Home program, which proposes that “Status as an active participant constitutes “specific facts” sufficient to support the motion” under Rule 2.550 of the California Rules of Court requires that the court “specifically state the facts.” She did not provide evidence beyond her statement that she is an active participant in that program, but Plaintiff appears to concede this, and Doe presented a copy of her participation to the Court at the prior hearing.

Plaintiff argues prejudice and inequity as it is critical for landlords to be able to make informed decisions about potential tenants and sealing records deprives future landlords of relevant information. He admits, his concern is not limited to him, but more broadly as to future landlords and members of the public. Although these arguments present some level of prejudice to future landlords, Plaintiff raises no real prejudice to him by a redaction of Does true name from the public record.

Doe’s participation in the Safe at Home Program and her Declaration weigh in favor of the Court finding there is a substantial probability of prejudice to Doe Defendant if her request to seal is denied.

(4) Sealing is narrowly tailored and (5) no less restrictive means:

Doe is seeking to seal the documents in the Court file and to replace them with redacted versions, simply removing her true name, signature, and initials. The Court finds this to be a narrowly tailored resolution. Plaintiff has not identified any less restrictive means, and the Court is satisfied that there is no such less restrictive means.

Conclusion:

Based on the foregoing, the request to seal all Court documents is Denied. However, the request to seal the Court documents and to replace them with redacted versions filed confidentially by Doe is GRANTED in PART, as described.

The Court finds the overriding interests of Doe Defendant’s safety support sealing the original records and replacing them with the redacted versions. The redacted records provided by Doe

simply redact her true name, signature, and initials from the original documents, and replace her name with the pseudonym Jane Doe.

Additionally, the Court finds the probability of prejudice to Doe is substantial should her prior alleged perpetrators obtain her personal information, while the prejudice to Plaintiff is minimal in comparison. The redaction of Doe's name, signature, and initials from the previously filed court documents is a narrowly tailored solution with no less restrictive means available.

The following exceptions apply:

- (a) The Proof of Service (POS-010 at page 22 of the SH-001 Confidential Information Form) redacts Doe's name but does not have the Jane Doe name added in its place and must do so. Doe Defendant is to re-submit a Declaration and Order to the Court, attaching a revised redacted version of this document, curing this defect, and requesting the Court replace the original with the properly redacted version.
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- (c) A failure to file and serve a Declaration and Order, attaching the revised redacted versions of the documents listed above in (a) and (b), **by no later than July 20, 2026**, will result in these documents remaining in the public court file as is.
- (d) In the Declaration of David Leighton in Opposition to Motion to Seal Court Records, paragraph 13, Doe seeks to redact the words "law-enforcement personnel." (page 132 of the SH-001 Form). There is no explanation or basis for requesting these words redacted. The request to redact is DENIED.

The Court further grants Doe's request to redact from all future filings, any reference to her identifying information including her date of birth, age, current address, phone number, email address, and images of her face.

Defendant Doe is to give notice of this ruling within five (5) court days.